INDIAN RIVER COUNTY
PROBATE MEMORANDUM
REBECCA WHITE, CIRCUIT JUDGE
EFFECTIVE JANUARY 6, 2025

Judicial Assistant: Maggie Molina
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Indian River County Courthouse
2000 16th Avenue
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Courtroom 6
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PLEASE REVIEW THIS MEMORANDUM AND THE INFORMATION PROVIDED ON JUDGE WHITE'S WEBPAGE PRIOR TO CONTACTING THE JUDGE'S OFFICE.

EX-PARTE* COMMUNICATION:** Please do not ask the Judicial Assistant or other Court personnel to communicate any message to the Judge as this is *ex-parte* communication. All communication with the Court shall be in open Court with all parties present, in writing or by email copied to opposing counsel/party, and/or filed with the Clerk. ***This office can best respond to all communications via e-mail.

The email address for submitting ALL PROBATE (CP) checklists, petitions/motions, proposed orders, and letters of administration is ProbateIRC@circuit19.org.

DO NOT SUBMIT GUARDIANSHIP MATTERS TO ProbateIRC@Circuit19.org.
The probate case managers do not process guardianship matters.
Please review the GUARDIANSHIP MEMORANDUM FOR MORE INFORMATION.

Submissions are reviewed and processed by the probate case managers in the order received. You will be notified by the case managers when your submission has been sent to the judge for review. If additional information is needed, the case managers will follow up by e-mail. Please allow time for the case managers and the Court to review and finalize probate submissions. Currently, the probate division is experiencing a high volume of submissions.

When following up on the status of a submission/order, please contact the case managers at ProbateIRC@circuit19.org. Please respond to or forward the original submission to the case managers to avoid confusion. DO NOT RESUBMIT PLEADINGS IN A NEW E-MAIL UNLESS OTHERWISE ADVISED BY THE CASE MANAGERS TO DO SO.

DO NOT CALL THE JUDICIAL ASSISTANT TO CHECK ON THE STATUS OF YOUR ORDERS.

If a submission is urgent, please indicate "**EMERGENCY**" or "**URGENT**" in the subject line and include additional information as to the urgency. If urgency is not indicated in the subject line or body of the e-mail, the submission will be processed in the order it was received.

DO NOT SUBMIT HARD COPIES OF PROPOSED ORDERS/LETTERS TO THE JUDGE OR SUBMIT PROPOSED ORDERS/LETTERS THROUGH THE E-PORTAL. YOU MUST SUBMIT YOUR PLEADING(S) TO THE PROBATE CASE MANAGERS, VIA EMAIL, FOR PROCESSING.

HEARING REQUESTS must be submitted, via e-mail, to the Judicial Assistant at **MolinaM@circuit19.org** with a copy of your E-FILED motion/petition, amount of time needed, and include all parties involved in your case. *Available hearing dates will be provided by the judicial assistant. Please note that hearing requests are addressed in the order received.*

ALL HEARING PACKETS FOR SCHEDULED PROBATE HEARINGS MUST BE SUBMITTED TO MOLINAM@CIRCUIT19.ORG. DO NOT SUBMIT HEARING PACKETS TO THE CASE MANAGERS. FAILURE TO SUBMIT THE HEARING PACKET BY THE SPECIFIED DATE WILL RESULT IN YOUR HEARING BEING STRICKEN FROM THE COURT'S DOCKET AND WILL NEED TO BE RESCHEDULED FOR A LATER DATE.

***PRO SE*/SELF-REPRESENTED PARTIES:**

Petitioners and/or Respondents without an attorney are "pro se." All pro se cases are handled by a case manager. Pro se litigants may inquire as to the status of their case only by email at ProbateIRC@Circuit19.org. Please do not contact the Judge's office for pro se matters. ***You will be automatically referred to the probate case managers.***

PROBATE DIVISION PROCEDURES:

Checklists are required for both Opening and Closing Estates. The checklists are posted on Judge White's web page under "FORMS" on **www.circuit19.org**. *PLEASE NOTE THAT THERE IS NO CHECKLIST FOR HOMESTEAD PETITIONS.*

1. Opening a Formal Estate;
2. Closing a Formal Estate (Discharge);
3. Summary Administration; and
4. Disposition of Personal Property with Administration

Attorneys must verify completion and correctness of the Checklists by personal signature. No signature stamps are allowed. Once the checklist is complete, the attorney's office shall submit via email only to the probate case managers at ProbateIRC@circuit19.org:

1. Completed checklist;
2. Proposed Order(s) and Letters in WORD format. All proposed orders must be filled out completely; and
3. A description of the documents being provided, as well as the action you wish to be taken.

WHEN A BOND IS REQUIRED: An appropriate bond will be required on all estates with a foreign personal representative regardless of waiver in the Will. Cash bonds may be deposited with the Clerk of Court with the applicable registry fee. Please contact the Clerk of Court, Probate Division for information. The original Surety Bond must be delivered to the Clerk of Court after your client has signed the Bond. The Clerk will forward the Bond to Judge Griffin for signature and e-filing. Your copy of Letters will be provided by eservice. Certified copies may be obtained from the Clerk of Court.

ORIGINAL DOCUMENTS AND MONIES ARE NOT TO BE SENT DIRECTLY TO THE JUDGE'S OFFICE, AND THE JUDGE'S OFFICE TAKES NO RESPONSIBILITY FOR SUCH ITEMS. DOCUMENTS ARE TO BE FILED WITH THE CLERK OF COURT, PROBATE AND GUARDIANSHIP DIVISION. Please visit the Clerk of Court webpage for more information: Probate and Guardianship – Indian River Clerk of the Circuit Court & Comptroller

All court filings and proposed orders MUST contain proper address certification—i.e. the FULL address of ALL parties or email address where the motion was served (or order will be served.) "I certify that a copy of the foregoing was emailed to all parties through the e- service portal" is NOT sufficient. Likewise, listing a party on the order "cc:" without listing the address is insufficient. If the party does not have an e-service address, then the moving party will be required to mail a copy of the court filing or order to that party.